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5 **SUPERIOR COURT OF WASHINGTON FOR KING COUNTY**

6 ZACKARIAH BENNETT,

7 Plaintiff,

NO. 23-2-11352-7 SEA

8 v.

ORDER GRANTING
DEFENDANT'S MOTION FOR
SUMMARY JUDGMENT

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10 MELVINA MANNING,

11 Defendant.

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14 THIS MATTER came before the Court on Defendant's Motion for Summary Judgment. The
15 Court has considered the record in this case, the materials submitted by the parties in regard to
16 this motion, as well as oral arguments from the parties, and the Court finds itself fully informed.
17 Now therefore,

18 IT IS HEREBY ORDERED, ADJUDGED, and DECREED as follows:

19 The Court finds that there are no genuine issues of material fact for trial in regard to the
20 issues presented and the Defendant is entitled to Summary Judgment as a matter of law.

21 Plaintiff's complaint alleges that the Defendant committed tortious interference with
22 parental rights, both criminally and civilly. As the Plaintiff is not an elected or appointed
23 prosecuting attorney, Plaintiff has no lawful basis or authority as an individual to bring a
24 criminal prosecutorial action on behalf of the State of Washington. Further, the facts are
25 undisputed that the Plaintiff does not have any legal parental rights to be interfered with, as these
26 rights were previously terminated by the Snohomish County Superior Court in 2013, thus
providing no basis for further civil action on these grounds. Any other issues presented in Mr.

1 Bennett's complaint have been adjudicated previously in court or are additional criminal charges
2 the Plaintiff wishes to bring against the Defendant and are without merit.

3 Therefore, the Defendant's Motion for Summary Judgment is GRANTED and the
4 Plaintiff's case is dismissed.

5 **IT IS SO ORDERED.**

6 DONE IN OPEN COURT on

July 3, 2024

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11 Honorable Jaime Hawk

13 Presented by:

14 /s/ Nancy A. Gass

15 Nancy A. Gass

16 Attorney for Respondent

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WSBA #